

Court No. - 35

Case :- WRIT - C No. - 51462 of 2009

Petitioner :- Emmanueal Winton Gideon

Respondent :- State Of U.P. & Others

Petitioner Counsel :- R.S. Kushwaha

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Sunil Ambwani,J.

Hon'ble Virendra Singh,J.

Heard learned counsel for the petitioner. Learned standing counsel appears for respondent nos. 1, 2 and 3. Shri Subhash Gosai appears for respondents no. 4, 5, 6.

The petitioner has prayed for setting aside the recovery proceeding vide citation dated 29.8.2009 for recovering electricity dues. It is admitted to the petitioner that he had made the last regular payment only upto September, 1994 and continued to consume electricity thereafter without paying the electricity dues. It is alleged that on 3.3.2006 as against 66,329/- he had paid only Rs. 28,000/-. The electricity was disconnected and that now the recovery of Rs. 1, 15, 236/- is being pursued against him.

The petitioner has not paid the electricity dues regularly nor made any protest to the enhanced charges or the correctness of the amount calculated to be paid by him.

The petitioner has remedies under Para 6.5 of the U.P. Electricity Supply Code 2005 to approach the Executive Engineer for determination of the correct amount after paying the dues in accordance with Para 6.3 (2) of the Code.

The writ petition is **dismissed** on the ground of alternative remedies available to the petitioner under the U.P. Electricity Supply Code, 2005.

Order Date :- 7.10.2009

RKP